Forum: **Security Council (SC)**

Issue: Regulating Private Military Contractors in International Conflicts.

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Introduction

The nature of modern conflicts has undergone a significant transformation, where states have been increasingly relying on private actors rather than official state military forces. This increasing involvement led to the rise of Private Military Companies, also known as PMCs, who provide service ranging from security, training and logistics to direct engagement in operations. They have played visible roles in conflicts around the world, in Iraq, Ukraine, Afghanistan and parts of Africa, where like the Africa Corps and the Academi have continuously demonstrated the significant influence of private military involvement.

The reliance of PMCs can provide certain advantages to nations, including operational flexibility and the reduction of political costs for involvement in conflicts, as PMCs can offer plausible deniability, therefore denying responsibility for the operations. However, this raises concerns for international peace and security, the accountability and transparency of the use of PMCs are inadequately addressed, and the private actors in conflict zones further destabilize regions. As the presence of PMCs continues to expand, the question of effective international regulation has become increasingly urgent for the Security Council.

Definition of Key Terms

Private Military Company (PMC)

A private company that provides armed combat or security services. Their personnel are referred to as private military contractors. Their services are often intended to supplement official armed forces in service of governments.

Plausible Deniability

A tactic that allows the denial of knowledge, participation, or an active role in carrying out an activity. Under this context, countries may deny responsibility for actions carried out by non-state actors such as PMCs even when indirectly involved.

Mercenary

An individual who is not a member of any official military force and participates in armed conflict, primarily for personal gain. They are defined and restricted under Article 47 of Additional Protocol I to the Geneva Conventions, and criminalized by the 1989 United Nations International Convention against the Recruitment, Use, Financing and Training of Mercenaries.

State Sovereignty

The principle that a state has full authority over its own territory and affairs, therefore is independent of foreign control and influences.

Geneva Conventions

The 1949 Geneva Conventions contain rules limiting inhumane conducts in war, protecting people who do not take part in the fighting.

Non-State Armed Actors (NSAA)

Unofficial state military forces that participate in armed conflict, including PMCs, militias and such.

Background

Origin of Privatized Warfare

Although the concept of private military companies didn't exist until the 1990s, private individuals in armed conflict have long been used by states, especially throughout European and African history. In the post colonial period, mercenary activity became particularly evident in Africa during the 1960s and 1970s. For example, in the Congo Crisis, where foreign forces were hired to support various factions. This led to the 1989 UN international Convention against the Recruitment, Use, Financing and Training of Mercenaries. This convention however, was limited in terms of ratification and enforcement, and has allowed modern private military companies to operate in the gray areas of the convention.

The Development of Private Military Companies (1990s to Early 2000s)

While mercenary activity has existed throughout the history of civilization, private military companies only emerged in the twentieth century. The history of private military companies can be traced back to the Cold War era. In this period many states reduced their size of standard militaries, yet experienced increasing numbers of regional

conflict. This created a demand for flexible and deployable armed forces, which led to the emergence of private military companies in the 1990s. The United Nations attempted to restrict the usage of mercenaries through the International Convention against the Recruitment, Use, Financing and Training of Mercenaries. However, the convention is not universally adopted, and only applies to states that have ratified it, several major powers are not parties to it. This led to the usage of PMCs in conflicts, bringing the matter to public attention. The U.S. used private military contractors during the War on Terror, and Russia also deployed the Wagner Group during the Ukraine war and African conflicts, which the group has been contracted by governments in countries such as Mali. ("Private Military Companies | EBSCO")

These periods were the periods where the use of PMCs increased dramatically. The U.S. led interventions in Iraq and Afghanistan. At the height of operations, the number of private military contractors in Iraq equaled U.S. official military personnel, playing roles ranging from logistics, base maintenance and armed security. This period marked a shift of PMCs role, from supplementary actors to integral components of military forces.

Figure 1: Number of Civilians contracted to support military operations in U.S. history (Statista)

Shift to Geopolitical Instruments (2010s to Present)

In the past decade, PMCs have been increasingly used as a tool of statecraft and geopolitical influence, especially by states seeking to operate with plausible deniability. The most prominent example is the Wagner Group, which has been active in Ukraine, Syria, and African regions like Mali and the Central African Republic.

Wagner has been supporting allied governments, conducting combat operations and accessing natural resources around the region. Its activities blur the line between state and non-state actors. States have been utilizing plausible deniability to project military influence on a region while limiting direct attribution. At the same time, states continued to rely on PMCs for security and training, reinforcing their role in modern conflicts.

Figure 2: Wagner Group's Global Footprint (Statista)d

Legal Status of PMCs

One of the central challenges surrounding the use of PMCs lies is their ambiguous legal status under international law. While the 1989 UN Mercenary Convention does address the training and usage of traditional mercenaries, many PMCs operate outside this definition by framing themselves as legitimate corporate entities that provide security or logistical service. This creates a legal gray area, as current conventions lack definitive categories that are suitable for PMCs. Jurisdiction is often fragmented between the home state, host state and international legal frameworks, which leads to inconsistent enforcement.

Distribution of Private Military Companies

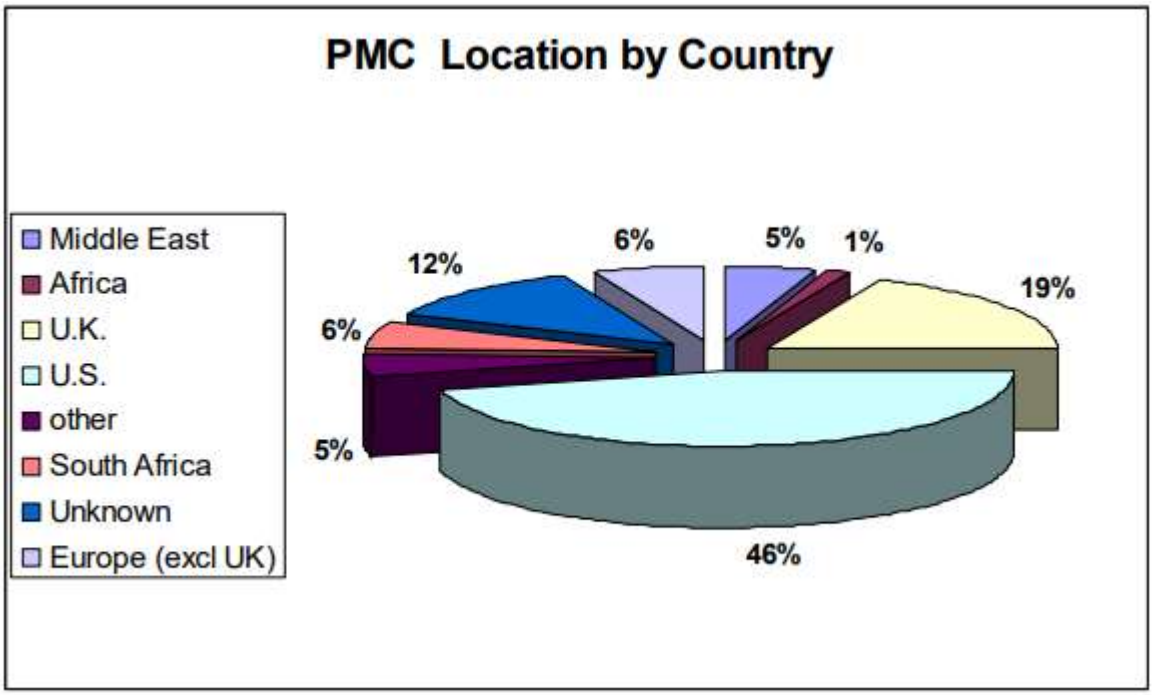

Figure 3: PMC Location by Country (Calhoun: The NPS Institutional Archive DSpace Repository)

The geographical distribution of PMCs is highly concentrated in Western states. The most prominent being the United States and the United Kingdom, with some presences in Europe as well. This pattern is driven by the presence of advanced defense industries and established military infrastructures. This enables the formation and expansion of private military companies outside of their official military forces. These states often maintain extensive overseas interests and military engagements, which creates the demand for PMCs.

At the same time, a geographical disconnection between the headquarters of PMCs and their areas of operation exist. Companies are predominantly based in stable and economically developed regions, yet their activities are concentrated in conflict prone areas such as the Middle East, Africa and parts of Asia. This reveals a trend in which private military contractors are exported to regions that experience instability, weak governance and to some extent, drives this instability.

Figure 4: PMC Headquarter Locations (Calhoun: The NPS Institutional Archive DSpace Repository)

Major Parties Involved

Africa Corps (Former Wagner Group)

The Africa Corps Group is a PMC that is associated with the Russian state. Its activities cover a large area, operating in conflicts across Ukraine, Syria, Mali, Libya, Central African Republic and such. The Africa Corps provides combat support, training and security services. Its operation mode allows for certain levels of separation between state authorities and its activities. The Africa Corps has been reported of alleged human rights exploitation and limited transparency by the United Nations and Human Rights Watch.

Academi (Blackwater)

The Academi, previously known as the Blackwater, is one of the most well known United States PMCs. They provided U.S. personnel and installations during the Iraq War. The PMC was founded on December 26, 1996 by former Navy SEAL officer Erik Prince. In 2007, Blackwater received widespread notoriety for the Nisour Square Massacre in Baghdad, since groups of its employees killed 17 Iraqi civilians and injured 20.

Russian Federation

Russia is a major state actor in the privatization of warfare. Its association with PMCs such as the Africa Corps has enabled Russia to project military influence abroad while maintaining a degree of plausible deniability, potentially reducing the political and legal costs associated with deploying regular armed forces. This approach has been observed in Russia's engagements in conflicts across Ukraine, the Middle East, and Africa.

United States of America

The United States of America has been one of the largest and most influential users of PMCs, and has been the center of debate surrounding privatization of warfare. This is most evident with their operations in Iraq and Afghanistan. Their PMC usage covers a wide area, including security, logistics, intelligence support, and training of local forces. This reliance has allowed them to operate with flexibility and sustain oversea operations. However, it has also raised concerns on accountability and transparency.

People's Republic of China

China has increasingly relied on private security companies to protect its overseas investments, particularly under the Belt and Road Initiative. This is carried out through groups such as DeWe Security and Frontier Services Group (FSG), who are primarily assigned with infrastructure, personnel and supply routes protection tasks in high-risk regions. However, these firms are generally less involved in direct combat operations, but used more as a tool of geopolitical influence. Their increasing presence in Africa and the Middle East are tied to economic interests for their natural resources.

United Kingdom

The United Kingdom is a central actor in the global private military and security industry. It is the home state for some major companies but at the same time an advocate for regulatory frameworks. Companies such as Aegis Defense Services originated in the UK and have operated in conflict zones like Iraq and Afghanistan, providing services ranging from armed protection to logistical support. The United Kingdom government has developed a self-regulatory and market based approach, supporting initiatives such as the International Code of Conduct for Private Security Providers, yet never implemented strict domestic legislations.

Aegis Defense Services

Aegis Defence Services is a UK based private military company that has played a significant role in the expansion of private contractors in modern conflicts. It has operated in Afghanistan, Africa and other high risk regions. Unlike other PMCs, Aegis generally maintained a lower public profile and emphasized compliance with international standards and frameworks. The company was founded in 2002, and played a significant role during the Iraq War. It was awarded major contracts by the United States Department of Defense to provide security support services for reconstruction programs. Its unique role in coordinating private security providers and protecting civilians positioned Aegis as a key intermediary between state actors and private contractors.

Timeline of Events

Date	Description of event
1960-1965	Congo Crisis, where foreign mercenaries were widely used
December 4, 1989	UN General Assembly Adopted the International Convention against the Recruitment, Use, Financing and Training of Mercenaries, officially criminalizing mercenary activity
October 20, 2001	The convention officially entered into force
1993-1995	Executive Outcomes conducted major operations supporting the Angolan government, marking one of the first modern PMC usages
May 1997	The Papua New Guinea government contracted Sangline International to suppress a rebellion, leading to political crises and international examination of PMCs.
March 20, 2003	The U.S. led invasion of Iraq, marking the start of the Iraq War
September 16, 2007	Contractors of the Blackwater group killed 17 civilians in Baghdad, raising concerns over PMCs' accountability
September 17, 2008	States endorsed the Montreux Document
November 9, 2010	The International Code of Conduct Association was created and established
February-March, 2014	Wagner Groups emerged in Ukraine
February 7, 2018	Battle of Khasham in Syria, where Wagner fighters directly engaged U.S. forces
2020-Present	Wagner increasingly engaged in African regions such as the Central African Republic and Mali

Previous Attempts to Resolve the Issue

- International Convention against the Recruitment, Use, Financing and Training of Mercenaries, 4 December 1989 (**A/RES/44/34**)

The International Convention against the Recruitment, Use, Financing and Training of Mercenaries officially labeled mercenary activities as illegal, and prohibited states to utilize them in conflicts. It ensures that states must enact domestic legislation against mercenary recruitment and participation. However, it has very limited effects due to the narrow legal definition of "mercenary" and major powers being unwilling to ratify the convention. Additionally, modern PMCs often operate in legal gray areas that fall outside the treaty's scope.

- On the Situation in Iraq (Regulation of Private Security Contractors), 2007 (**N/A**)

After many incidents involving private contractors in Iraq, the Iraqi government introduced legal measures to regulate the activities of foreign private security companies operating within Iraq. The regulations included strict licensing requirements and removing immunity previously given to contractors. These measures have improved state control, but enforcement was inconsistent due to security challenges within Iraq at the time which required a heavy reliance on foreign contractors.

- Montreux Document on Private Military and Security Companies, 17 September 2008 (**N/A**)

This document outlines the legal obligations of states regarding the activities of PMCs during armed conflicts. It lists down guidelines on the recommended practices, pushing for accountability, oversight, and respect for international humanitarian law. The document is widely endorsed, yet is non-binding and relies on voluntary compliance, limiting its effectiveness in regulating modern day PMCs.

- On the Use of Mercenaries as a Means of Violating Human Rights, 30 September 2010 (**A/HRC/RES/15/12, 2010**)

The United Nations Human Rights Council has adopted multiple resolutions addressing the impact of mercenaries and PMCs on human rights. These resolutions raise the major concerns surrounding the accountability, transparency, and the potential for abuses of PMCs in conflict zones. However, they only contribute to international awareness, as they are not legally binding and depend on state cooperation for implementation.

- Draft International Convention on the Regulation, Oversight and Monitoring of Private Military and Security Companies, 2010 (**N/A**)

The Draft Convention on Private Military and Security Companies aimed to establish a binding international framework governing PMCs through many monitoring mechanisms. However, its implementation has been continuously stalled due to disagreements among member states, particularly regarding state sovereignty and the role of PMCs in providing security.

- International Code of Conduct for Private Security Service Providers (ICoC), 9 November 2010 (**N/A**)

The International Code of Conduct for Private Security Service Providers establishes private security companies to be of a voluntary nature. It ensures they are committed to guaranteeing human rights, accountability, and transparency. Despite promoting the industry to engage in self-regulation, participation is not enforced and is fully voluntary, reducing its effectiveness in conflict zones where there is no supervision.

- On the Situation in Libya (Arms Embargo), 26 February 2011 (**S/RES/1970**)

Resolution 1970 imposed a comprehensive arms embargo in Libya in response to the escalating violence during the civil conflict. This resolution aimed at regulating the flow of weapons and military support to parties involved in the conflict. However, this resolution was enforced inconsistently, reports of violations and involvement of PMCs

like the Wagener group still existed. This resolution demonstrated the limitations of embargo based approaches in addressing the issue.

- On Countering Terrorist Financing, 28 March 2019 (**S/RES/2462**)

The resolution focuses on the suppression of terrorism financing. It includes the disruption of illicit financial networks. This resolution doesn't directly address PMCs, however it targets the funding frameworks and structures that are often used by such groups. The resolution emphasizes the financial transparency needed to regulate PMCs operating in gray areas.

- On the Situation in Libya (Foreign Mercenaries and PMCs), 2020 (**S/RES/2510**)

Resolution 2510 addressed the presence of foreign mercenaries and PMC activities within Libya, calling for their withdrawal and reaffirming the arms embargo. Despite this, enforcement has remained weak, and groups such as the Wagner Group have continued to operate in the region. This highlights the difficulty of regulating PMCs in active conflict zones.

Possible Solutions

Delegates may wish to consider a range of measures to address the challenges posed by private military contractors (PMCs) in international conflicts. Solutions should be constructed on the basis of national sovereignty, actionable realities, and the urgent need for accountability, transparency, and compliance with international humanitarian law.

1. Strengthening the International Legal Framework for PMCs

Delegates may consider updating or reinforcing existing international policies and frameworks, such as the 1989 UN Mercenary Convention, to emphasize and supplement their purpose and values in tackling PMC issues. This could involve broadening and adding to the definition of "mercenary" to include corporates and employees of PMCs, closing legal gray areas. Delegates may also explore the possibility of binding it to other frameworks such as the Geneva Conventions that establishes clear state responsibilities for PMC activities.

2. Controlling State Registration and Licensing of PMCs

Delegates may encourage the creation of a mandatory UN-backed registry for all PMCs operating across international borders. This registry could require companies to reveal and make clear of ownership, leadership, areas of operation, contracts, and compliance with international humanitarian law. States would be obligated to license PMCs only after verifying adherence to human rights and accountability standards, with non-compliance leading to sanctions or denial of operating privileges.

3. Establishing an Independent UN Monitoring and Oversight Mechanism

Delegates may propose the creation of a dedicated UN body, such as a Working Group with the role of monitoring PMC activities, investigating violations, and reporting regularly to the Security Council. This mechanism could receive complaints from affected states, civilians, or victims, and could coordinate with national authorities to ensure that action is taken.

4. Strengthening Financial Transparency and Sanctions Policies

Recognizing that PMCs operate through complex financial networks, delegates may consider measures to track and restrict funds flowing to companies implicated in human rights abuses or violations of international law. This could include requiring states to freeze assets, impose sanctions on PMC contracts, and deny access to international banking systems. Delegates may also explore expanding existing counterterrorism financing frameworks to cover PMC activities in conflict zones.

5. Promoting a Mandatory International Code of Conduct

Delegates may work toward creating a mandatory code that would require PMCs to adopt internal compliance programs, undergo independent audits, and submit to specific mechanisms in place. States could be required to contract only with PMCs that have certified adherence to the code, creating market-based incentives for compliance.

6. Regulating the Export of PMC Services as Arms Transfers

Delegates may consider provision of private military services, for direct combat, training, and intelligence, as subject to the same restrictions as arms transfers under the Arms Trade Treaty (ATT) or future Security Council resolutions. This would require states to assess the risk of PMCs contributing to human rights violations, breaches of international law, or regional destabilization before authorizing their operations abroad.

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